

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3766

By: Turner

AS INTRODUCED

An Act relating to driving under the influence; amending Section 8, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20H), which relates to Class B3 offenses; updating statutory references; amending Section 9, Chapter 366, O.S.L. 2024, as amended by Section 3, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20I), which relates to Class B4 offenses; updating statutory references; amending Section 13, Chapter 366, O.S.L. 2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20M), which relates to Class C2 offenses; updating statutory references; amending 47 O.S. 2021, Section 6-205, as amended by Section 10, Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025, Section 6-205), which relates to mandatory revocation of driving privileges; updating statutory references; amending 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), which relates to persons under the influence of alcohol or other intoxicating substance; setting requirements for driving under the influence of a controlled substance; stating the presence of certain metabolites shall not constitute a per se violation; defining terms; setting standards for the concentration of certain substances in the body; authorizing the Oklahoma Board of Tests for Alcohol and Drug Influence to promulgate certain rules; authorizing the presentation of certain evidence; authorizing the use of independent evidence for prosecution; requiring chemical test make certain specifications; granting right to use independent testing; updating statutory references; amending 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), which relates to persons involved in an

1 injury accident under the influence; updating
2 statutory references; amending 47 O.S. 2021, Section
3 11-906.4, which relates to driving under the
4 influence while underage; updating statutory
5 references; and providing an effective date.
6

7 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

8 SECTION 1. AMENDATORY Section 8, Chapter 366, O.S.L.
9 2024 (21 O.S. Supp. 2025, Section 20H), is amended to read as
10 follows:

11 Section 20H. A. Upon the effective date of this act, Class B3
12 shall include the following criminal offenses:

13 1. Embezzlement of state property by a public officer of the
14 state or any county, city, town, or member or officer of the
15 Legislature, deputy, or clerk, as provided for in Section 341 of
16 ~~Title 21 of the Oklahoma Statutes~~ this title;

17 2. Burning, destroying, or injuring any public building, as
18 provided for in Section 349 of Title 21 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 3. Resisting or aiding in resisting the execution of process,
21 as provided for in Section 539 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

1 4. Domestic abuse with a prior pattern of physical abuse, as
2 provided for in Section 644.1 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 5. Assault, battery, or assault and battery upon an intimate
5 partner or a family or household member with any sharp or dangerous
6 weapon, as provided for in paragraph 1 of subsection D of Section
7 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 6. Assault and battery against a current or former intimate
9 partner or a family or household member that results in great bodily
10 injury to the victim, as provided for in subsection F of Section 644
11 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 7. Second or subsequent conviction for assault and battery by
13 strangulation or attempted strangulation against an intimate partner
14 or a family or household member, as provided for in subsection J of
15 Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 8. Second or subsequent conviction for committing or attempting
17 to commit a felony while wearing body armor, as provided for in
18 Section 1289.26 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 9. Riotous assembly for the purpose of resisting the execution
20 of any statute or obstructing any public officer, as provided for in
21 paragraph 2 of Section 1312 ~~Title 21 of the Oklahoma Statutes~~ this
22 title;

23 10. Carrying at the time of a riot any firearm or other deadly
24 weapon or being disguised while participating in a riot, as provided

1 for in paragraph 3 of Section 1312 of ~~Title 21 of the Oklahoma~~
2 ~~Statutes~~ this title;

3 11. Directing, advising, encouraging, or soliciting other
4 persons to use force or violence while participating in a riot, as
5 provided for in paragraph 4 of Section 1312 of ~~Title 21 of the~~
6 ~~Oklahoma Statutes~~ this title;

7 12. Arson with the intent to injure or defraud the insurer, as
8 provided for in subsection B of Section 1403 of ~~Title 21 of the~~
9 ~~Oklahoma Statutes~~ this title;

10 13. Forgery in the first degree, as provided for in Section
11 1561 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 14. Forgery of stock certificates or securities, as provided
13 for in Section 1562 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 15. Fraudulently uttering one's signature on any instrument as
15 that of another with the same name, as provided for in Section 1622
16 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 16. Fraudulently uttering one's endorsement on any negotiable
18 instrument as that of another with the same name, as provided for in
19 Section 1623 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 17. Total or partial erasure or obliteration of any instrument
21 or writing with intent to defraud, as provided for in Section 1624
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 18. Signing fictitious name as an officer or agent of a
2 corporation, as provided for in Section 1626 of ~~Title 21 of the~~
3 ~~Oklahoma Statutes~~ this title;

4 19. Procuring, soliciting, selling, or receiving more than ten
5 (10) telephone records by fraudulent, deceptive, or false means, as
6 provided for in paragraph 3 of subsection B of Section 1742.2 of
7 ~~Title 21 of the Oklahoma Statutes~~ this title;

8 20. Violating the Viatical Settlements Act of 2008, as provided
9 for in paragraph 1 of subsection F of Section 4055.14 of Title 36 of
10 the Oklahoma Statutes;

11 21. Third or subsequent conviction of driving under the
12 influence of alcohol or other intoxicating substance, as provided
13 for in paragraph 4 of subsection ~~G~~ H of Section 11-902 of Title 47
14 of the Oklahoma Statutes;

15 22. Driving under the influence with a blood or breath alcohol
16 concentration of fifteen-hundredths (0.15) or more, as provided for
17 in subsection ~~D~~ I of Section 11-902 of Title 47 of the Oklahoma
18 Statutes;

19 23. Injuring, destroying, or attempting to injure or destroy
20 any hazardous liquid transportation system, as provided for in
21 Section 47.6 of Title 52 of the Oklahoma Statutes;

22 24. Bringing into or having in his or her possession in any
23 jail, state penal institution, or other place where prisoners are
24 located, any gun, knife, bomb, other dangerous instrument,

1 controlled dangerous substance, alcoholic beverage, money, or
2 financial documents, as provided for in subsection A of Section 21
3 of Title 57 of the Oklahoma Statutes;

4 25. Purchasing or attempting to purchase, receive, or otherwise
5 acquire any product, mixture, or preparation containing any
6 detectable quantity of base pseudoephedrine or ephedrine after a
7 conviction of manufacturing or attempting to manufacture
8 methamphetamine, as provided for in paragraph 5 of subsection G of
9 Section 2-401 of Title 63 of the Oklahoma Statutes;

10 26. Distributing, other than by dispensing, a Schedule I or
11 Schedule II controlled dangerous substance, in the course of
12 legitimate business, as provided for in paragraph 1 of subsection A
13 of Section 2-406 of Title 63 of the Oklahoma Statutes;

14 27. Using a fictitious, revoked, suspended, or fraudulent
15 registration number in the course of manufacturing or distributing a
16 controlled dangerous substance, as provided for in paragraph 2 of
17 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

18 28. Furnishing false or fraudulent material information in, or
19 omitting any material information from, any application, report, or
20 document required by the Uniform Controlled Dangerous Substances
21 Act, as provided for in paragraph 4 of subsection A of Section 2-406
22 of Title 63 of the Oklahoma Statutes;

23 29. Making, distributing, or possessing any punch, die, plate,
24 stone, or other thing designed to print, imprint, or reproduce the

1 trademark, trade name, or other identifying mark, upon any drug,
2 container, or labeling, as provided for in paragraph 5 of subsection
3 A of Section 2-406 of Title 63 of the Oklahoma Statutes;

4 30. Trafficking twenty-five (25) pounds or more of marijuana,
5 as provided for in subparagraph a of paragraph 1 of subsection C of
6 Section 2-415 of Title 63 of the Oklahoma Statutes;

7 31. Trafficking twenty-eight (28) grams or more of cocaine,
8 coca leaves, or cocaine base, as provided for in subparagraph a of
9 paragraph 2 of subsection C of Section 2-415 of Title 63 of the
10 Oklahoma Statutes;

11 32. Trafficking three hundred (300) grams or more of cocaine,
12 coca leaves, or cocaine base, as provided for in subparagraph b of
13 paragraph 2 of subsection C of Section 2-415 of Title 63 of the
14 Oklahoma Statutes;

15 33. Trafficking ten (10) grams or more of heroin, as provided
16 for in subparagraph a of paragraph 3 of subsection C of Section 2-
17 415 of Title 63 of the Oklahoma Statutes;

18 34. Trafficking twenty (20) grams or more of amphetamine or
19 methamphetamine, as provided for in subparagraph a of paragraph 4 of
20 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

21 35. Trafficking two hundred (200) grams or more of amphetamine
22 or methamphetamine, as provided for in subparagraph b of paragraph 4
23 of subsection C of Section 2-415 of Title 63 of the Oklahoma
24 Statutes;

1 36. Trafficking one (1) gram or more of lysergic acid
2 diethylamide (LSD), as provided for in subparagraph a of paragraph 5
3 of subsection C of Section 2-415 of Title 63 of the Oklahoma
4 Statutes;

5 37. Trafficking twenty (20) grams or more of phencyclidine
6 (PCP), as provided for in subparagraph a of paragraph 6 of
7 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

8 38. Trafficking thirty (30) tablets or ten (10) grams of 3,4-
9 Methylenedioxy methamphetamine, as provided for in subparagraph a of
10 paragraph 7 of subsection C of Section 2-415 of Title 63 of the
11 Oklahoma Statutes;

12 39. Aggravated trafficking one hundred (100) tablets or thirty
13 (30) grams of 3,4-Methylenedioxy methamphetamine, as provided for in
14 subparagraph b of paragraph 7 of subsection C of Section 2-415 of
15 Title 63 of the Oklahoma Statutes;

16 40. Trafficking one thousand (1,000) grams or more of morphine,
17 as provided for in paragraph 8 of subsection C of Section 2-415 of
18 Title 63 of the Oklahoma Statutes;

19 41. Trafficking four hundred (400) grams or more of oxycodone,
20 as provided for in paragraph 9 of subsection C of Section 2-415 of
21 Title 63 of the Oklahoma Statutes;

22 42. Trafficking three thousand seven hundred fifty (3,750)
23 grams or more of hydrocodone, as provided for in paragraph 10 of
24 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

1 43. Trafficking five hundred (500) grams or more of
2 benzodiazepine, as provided for in paragraph 11 of subsection C of
3 Section 2-415 of Title 63 of the Oklahoma Statutes;

4 44. Trafficking one (1) gram or more of fentanyl or
5 carfentanyl, as provided for in subparagraph a of paragraph 12 of
6 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

7 45. Employing, hiring, or using an individual under fifteen
8 (15) years of age to unlawfully transport, carry, sell, give away,
9 prepare for sale, or peddle any controlled dangerous substance, as
10 provided for in subsection D of Section 2-419.1 of Title 63 of the
11 Oklahoma Statutes;

12 46. Second or subsequent conviction for violating the Vessel
13 and Motor Chop Shop, Stolen and Altered Property Act, as provided
14 for in subsection J of Section 4253 of Title 63 of the Oklahoma
15 Statutes; and

16 47. Third or subsequent conviction for violating the Vessel and
17 Motor Chop Shop, Stolen and Altered Property Act, as provided for in
18 subsection J of Section 4253 of Title 63 of the Oklahoma Statutes.

19 B. Any person convicted of a Class B3 criminal offense set
20 forth in this section shall be punished in accordance with the
21 corresponding penalties provided for in the Oklahoma Statutes.

22 SECTION 2. AMENDATORY Section 9, Chapter 366, O.S.L.
23 2024, as amended by Section 3, Chapter 187, O.S.L. 2025 (21 O.S.
24 Supp. 2025, Section 20I), is amended to read as follows:

1 Section 20I. A. Upon the effective date of this act, Class B4
2 shall include the following criminal offenses:

3 1. Concealing the birth or death of a child, as provided for in
4 Section 53 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 2. Assault, battery, or assault and battery with a sharp or
6 dangerous weapon, as provided for in Section 645 of ~~Title 21 of the~~
7 ~~Oklahoma Statutes~~ this title;

8 3. Robbery in the second degree, as provided for in Section 799
9 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 4. Neglecting a vulnerable adult, as provided for in subsection
11 A of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 5. Malicious harassment of another person based on that
13 person's race, color, religion, ancestry, national origin, or
14 disability, as provided for in Section 850 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 6. Abandonment of a child under ten (10) years of age, as
17 provided for in Section 851 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 7. Abandonment of a wife or child under fifteen (15) years of
20 age, as provided for in Section 853 of ~~Title 21 of the Oklahoma~~
21 ~~Statutes~~ this title;

22 8. Second or subsequent conviction for causing, aiding,
23 abetting, encouraging, soliciting, or recruiting a minor to
24 participate, join, or associate with a criminal street gang, as

1 provided for in subsection E of Section 856 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 9. Incest, as provided for in Section 885 of ~~Title 21 of the~~
4 ~~Oklahoma Statutes~~ this title;

5 10. Crime against nature, as provided for in Section 886 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 11. Taking or enticing away any child under sixteen (16) years
8 of age with the intent to detain or conceal such child, as provided
9 for in Section 891 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 12. Indecent exposure, as provided for in paragraph 1 of
11 subsection A of Section 1021 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 13. Procuring, counseling, or assisting another to commit an
14 act of indecent exposure, as provided for in paragraph 2 of
15 subsection A of Section 1021 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 14. Preparing, publishing, selling, distributing, downloading
18 on a computer, or exhibiting obscene material or child pornography,
19 as provided for in paragraph 3 of subsection A of Section 1021 of
20 ~~Title 21 of the Oklahoma Statutes~~ this title;

21 15. Preparing, selling, giving, loaning, distributing, or
22 exhibiting any type of obscene material or child pornography, as
23 provided for in paragraph 4 of subsection A of Section 1021 of ~~Title~~
24 ~~21 of the Oklahoma Statutes~~ this title;

1 16. Operating, owning, or maintaining a house of prostitution,
2 soliciting, enticing, or procuring another for prostitution, or
3 transporting or assisting in the transport of another for
4 prostitution purposes, as provided for in Section 1028 of ~~Title 21~~
5 ~~of the Oklahoma Statutes~~ this title;

6 17. Engaging in prostitution or soliciting, inducing, enticing,
7 or procuring another to commit an act of prostitution, as provided
8 for in subsection A of Section 1029 of ~~Title 21 of the Oklahoma~~
9 ~~Statutes~~ this title;

10 18. Purchasing, selling, or distributing obscene material or
11 child pornography, as provided for in Section 1040.13 ~~Title 21 of~~
12 ~~the Oklahoma Statutes~~ this title;

13 19. Encouraging, offering, or soliciting sexual conduct with a
14 minor by use of technology, as provided for in Section 1040.13a of
15 ~~Title 21 of the Oklahoma Statutes~~ this title;

16 20. Promoting a pyramid promotional scheme, as provided for in
17 Section 1073 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 21. Second or subsequent offense of permitting prostitution in
19 any house, building, room, or premises under the control of such
20 person, as provided for in Section 1086 of ~~Title 21 of the Oklahoma~~
21 ~~Statutes~~ this title;

22 22. Offering or offering to secure a child under eighteen (18)
23 years of age for the purpose of prostitution, as provided for in
24

1 paragraph 1 of subsection A of Section 1087 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 23. Knowingly permitting the prostitution of a child under
4 eighteen (18) years of age by an owner, proprietor, manager,
5 conductor, or other person in any house, place, building, room, or
6 other premises under the control of such person, as provided for in
7 paragraph 2 of subsection B of Section 1087 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 24. Taking a woman against her will to compel her by force or
10 duress to marry another, as provided for in Section 1118 of ~~Title 21~~
11 ~~of the Oklahoma Statutes~~ this title;

12 25. Abduction of a child under fifteen (15) years of age for
13 the purpose of marriage, concubinage, or any crime involving moral
14 turpitude, as provided for in Section 1119 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 26. Sexual battery, as provided for in subsection B of Section
17 1123 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 27. Indecent acts with a human corpse, as provided for in
19 subsection C of Section 1123 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 28. Desecration of a human corpse, as provided for in Section
22 1161.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 29. Stalking within ten (10) years of a prior conviction for
2 stalking, as provided for in subsection D of Section 1173 of ~~Title~~
3 ~~21 of the Oklahoma Statutes~~ this title;

4 30. Interfering with, molesting, or assaulting firefighters in
5 the performance of their duties, as provided for in Section 1217 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 31. Concealment of hazardous waste, as provided for in Section
8 1230.7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 32. Criminal syndicalism, as provided for in Section 1261 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title;

11 33. Sabotage, as provided for in Section 1262 of ~~Title 21 of~~
12 ~~the Oklahoma Statutes~~ this title;

13 34. Advocating or teaching criminal syndicalism or sabotage, as
14 provided for in Section 1263 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 35. Destroying, interfering, hindering, or tampering with real
17 or personal property with intent to hinder, delay, or interfere with
18 preparations for defense or for war, as provided for in Section
19 1265.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 36. Make or cause defects with any article or thing with
21 reasonable grounds to believe such article or thing will be used for
22 defense or for war, as provided for in Section 1265.3 of ~~Title 21 of~~
23 ~~the Oklahoma Statutes~~ this title;

1 37. Conspiracy to commit crimes provided in the Sabotage
2 Prevention Act, as provided for in Section 1265.5 of ~~Title 21 of the~~
3 ~~Oklahoma Statutes~~ this title;

4 38. Terrorism hoax, as provided for in Section 1268.4 of ~~Title~~
5 ~~21 of the Oklahoma Statutes~~ this title;

6 39. Engaging in terrorist activity by manufacturing, sending,
7 delivering, or possessing any toxic, noxious, or lethal substances,
8 chemical, biological, or nuclear materials, as provided for in
9 Section 1268.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 40. Conducting or attempting to conduct financial transactions
11 involving property related to terrorism, as provided for in Section
12 1268.7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 41. Using a money services business or an electronic funds
14 transfer in violation of the Oklahoma Antiterrorism Act, as provided
15 for in Section 1268.8 of ~~Title 21 of the Oklahoma Statutes~~ this
16 title;

17 42. Possession of a firearm by a convicted felon, as provided
18 for in subsection A of Section 1283 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 43. Possession of a firearm by a person serving a term of
21 probation for a felony or who is subject to supervision, probation,
22 parole, or inmate status, as provided for in subsection C of Section
23 1283 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 44. Possession of a firearm by a person previously adjudicated
2 as a delinquent child or youthful offender, as provided for in
3 subsection D of Section 1283 of ~~Title 21 of the Oklahoma Statutes~~
4 this title;

5 45. Possession of a firearm by a person who is an alien
6 illegally or unlawfully in the United States, as provided for in
7 subsection E of Section 1283 of ~~Title 21 of the Oklahoma Statutes~~
8 this title;

9 46. Allowing a convicted felon, adjudicated delinquent, or
10 youthful offender to possess a pistol authorized for use under the
11 Oklahoma Self-Defense Act by a person who has a handgun license, as
12 provided for in subsection F of Section 1283 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 47. Use of a firearm or other offensive weapon while committing
15 a felony, as provided for in Section 1287 of ~~Title 21 of the~~
16 ~~Oklahoma Statutes~~ this title;

17 48. Pointing a firearm, as provided for in Section 1289.16 of
18 ~~Title 21 of the Oklahoma Statutes~~ this title;

19 49. Manufacturing, importing, or selling restricted bullets, as
20 provided for in Section 1289.20 of ~~Title 21 of the Oklahoma Statutes~~
21 this title;

22 50. Possessing, carrying, or using or attempting to use against
23 another person any restricted bullets, as provided for in Section
24 1289.21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 51. Committing a felony while wearing body armor, as provided
2 for in Section 1289.26 ~~Title 21 of the Oklahoma Statutes~~ this title;

3 52. Carrying a stolen handgun, as provided for in subsection B
4 of Section 1290.21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 53. Incitement to riot, as provided for in Section 1320.2 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 54. Malicious destruction or damage to real or personal
8 property or malicious injury to another during a state of emergency,
9 as provided for in Section 1321.7 of ~~Title 21 of the Oklahoma~~
10 ~~Statutes~~ this title;

11 55. Participating in a riot during a state of emergency, as
12 provided for in subsection A of Section 1321.8 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 56. Causing an innocent or irresponsible person to engage in a
15 riot, as provided for in subsection E of Section 1321.8 of ~~Title 21~~
16 ~~of the Oklahoma Statutes~~ this title;

17 57. Possession of explosives by a convicted felon, as provided
18 for in Section 1368 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 58. Attempting, conspiring, or endeavoring to perform an act of
20 violence, as provided for in subsection A of Section 1378 of ~~Title~~
21 ~~21 of the Oklahoma Statutes~~ this title;

22 59. Devising a plan, scheme, or program of action to cause
23 serious bodily harm or death of another person, as provided for in
24

1 subsection C of Section 1378 of ~~Title 21 of the Oklahoma Statutes~~
2 this title;

3 60. Endangering any human life including emergency service
4 personnel while committing an act of arson, as provided for in
5 Section 1405 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 61. Intimidating, threatening, assaulting, or battering any
7 driver, attendant, guard, or passenger of a bus with intent to seize
8 the bus, as provided for in subsection B of Section 1903 of ~~Title 21~~
9 ~~of the Oklahoma Statutes~~ this title;

10 62. Discharging any firearm into or within any bus, terminal,
11 or other transportation facility, as provided for in subsection D of
12 Section 1903 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 63. Leaving the scene of a vehicle accident that resulted in
14 the death of a person, as provided for in Section 10-102.1 of Title
15 47 of the Oklahoma Statutes;

16 64. Second felony conviction of driving under the influence of
17 alcohol or other intoxicating substance, as provided for in
18 paragraph 3 of subsection ~~E~~ H of Section 11-902 of Title 47 of the
19 Oklahoma Statutes;

20 65. Causing an accident resulting in the death of another
21 person while operating a vehicle without a valid driver license, as
22 provided for in subsection C of Section 11-905 of Title 47 of the
23 Oklahoma Statutes;

1 66. Throwing or dropping any substance at a moving vehicle, as
2 provided for in subsection A of Section 11-1111 of Title 47 of the
3 Oklahoma Statutes;

4 67. Throwing or dropping any object from a bridge or overpass
5 with intent to damage property or injure a person, as provided for
6 in subsection B of Section 11-1111 of Title 47 of the Oklahoma
7 Statutes;

8 68. Manufacturing, selling, transferring, or furnishing a
9 precursor substance to another with knowledge the recipient will use
10 such substance to unlawfully manufacture a controlled substance, as
11 provided for in subsection C of Section 2-328 of Title 63 of the
12 Oklahoma Statutes;

13 69. Second or subsequent conviction for manufacturing, selling,
14 transferring, furnishing, or receiving a precursor substance, as
15 provided for in subsection D of Section 2-328 of Title 63 of the
16 Oklahoma Statutes;

17 70. Purchasing, obtaining, possessing, manufacturing, selling,
18 or transferring a precursor substance without a permit or making a
19 false statement in an application or report, as provided for in
20 subsection E of Section 2-328 of Title 63 of the Oklahoma Statutes;

21 71. Selling, transferring, distributing, or dispensing any
22 product containing ephedrine, pseudoephedrine, or
23 phenylpropanolamine to another with knowledge the purchaser will use
24 such product as a precursor to manufacture methamphetamine or

1 another controlled illegal substance, as provided for in Section 2-
2 333 of Title 63 of the Oklahoma Statutes;

3 72. Cultivating, producing, or knowingly permitting the
4 cultivation or production of any species of plants from which
5 controlled dangerous substances may be derived, as provided for in
6 subsection B of Section 2-509 of Title 63 of the Oklahoma Statutes;

7 73. Manufacturing or attempting to manufacture any controlled
8 dangerous substance by cooking, burning, or extracting and
9 converting marihuana or marihuana oil into hashish, hashish oil, or
10 hashish powder, as provided for in subsection H of Section 2-509 of
11 Title 63 of the Oklahoma Statutes;

12 74. Purchasing or possessing any quantity of pseudoephedrine by
13 a person who is subject to the Oklahoma Methamphetamine Offender
14 Registry Act, as provided for in subsection B of Section 2-701 of
15 Title 63 of the Oklahoma Statutes; and

16 75. Using an explosive or blasting agent with the intent to
17 kill, injure, or intimidate a person or unlawfully damage real or
18 personal property, as provided for in subsection B of Section 124.8
19 of Title 63 of the Oklahoma Statutes.

20 B. Any person convicted of a Class B4 criminal offense set
21 forth in this section shall be punished in accordance with the
22 corresponding penalties provided for in the Oklahoma Statutes.

SECTION 3. AMENDATORY Section 13, Chapter 366, O.S.L.

2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20M), is amended to read as follows:

Section 20M. A. Upon the effective date of this act, Class C2 shall include the following criminal offenses:

1. Theft of anhydrous equipment, as provided for in subsection B of Section 11-10 of Title 2 of the Oklahoma Statutes;

2. Branding, misbranding, marking, or mismarking any domestic animal with intent to defraud, as provided for in Section 268 of Title 4 of the Oklahoma Statutes;

3. Injuring, destroying, or attempting to injure or destroy any pipeline transportation system, as provided for in subsection C of Section 6.1 of Title 17 of the Oklahoma Statutes;

4. Embezzlement by a county treasurer or other officer, as provided for in Section 641 of Title 19 of the Oklahoma Statutes;

5. Giving or offering any bribe to an executive officer, as provided for in Section 265 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Receiving or agreeing to receive a bribe by an executive officer or person elected or appointed to an executive office, as provided for in Section 266 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Entry into a restricted area of a building or grounds using or carrying a deadly or dangerous weapon or firearm or engaging in

1 acts of violence that result in great bodily injury, as provided for
2 in paragraph 1 of subsection B of Section 282 of ~~Title 21 of the~~
3 ~~Oklahoma Statutes~~ this title;

4 8. Forcefully or fraudulently preventing the Legislature from
5 meeting or organizing, as provided for in Section 301 of ~~Title 21 of~~
6 ~~the Oklahoma Statutes~~ this title;

7 9. Forcefully or fraudulently compelling or attempting to
8 compel the Legislature to adjourn or disperse, as provided for in
9 Section 303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 10. Compelling or attempting to compel either house of the
11 Legislature to pass, amend, or reject any bill or resolution, grant
12 or refuse any petition, or to perform or omit to perform any other
13 official act, as provided for in Section 305 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;

15 11. Offering to give a bribe to any member of the Legislature
16 in order to influence the member in giving or withholding a vote, as
17 provided for in Section 308 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 12. Asking, receiving, or agreeing to receive any bribe by a
20 member of the Legislature, as provided for in Section 309 of ~~Title~~
21 ~~21 of the Oklahoma Statutes~~ this title;

22 13. Entering a fort, magazine, arsenal, armory, arsenal yard,
23 or encampment and seizing or taking away arms, ammunition, military
24

1 stores, or supplies belonging to the state, as provided for in
2 Section 350 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 14. Carrying, causing to be carried, or publicly displaying any
4 red flag or other emblem or banner indicating disloyalty to the
5 Government of the United States, as provided for in Section 374 of
6 ~~Title 21 of the Oklahoma Statutes~~ this title;

7 15. Bribery by a fiduciary, as provided for in subsection A of
8 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 16. Bribery of a fiduciary, as provided for in subsection B of
10 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 17. Commercial bribery of an insured depository institution or
12 credit union, as provided in Section 380.1 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 18. Accepting or requesting a bribe by public officers or
15 employees of this state, as provided for in Section 382 of ~~Title 21~~
16 ~~of the Oklahoma Statutes~~ this title;

17 19. Offering or giving a bribe to any judicial officer, as
18 provided for in Section 383 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 20. Attempting to influence a juror, as provided for in Section
21 388 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 21. Conspiracy to commit a felony, as provided for in
23 subsection C of Section 421 of ~~Title 21 of the Oklahoma Statutes~~
24 this title;

1 22. Conspiring to commit any act against the peace of the state
2 by two or more persons outside of the state, as provided for in
3 Section 422 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 23. Conspiring to commit any act against the state by two or
5 more persons, as provided for in Section 424 of ~~Title 21 of the~~
6 ~~Oklahoma Statutes~~ this title;

7 24. Attempting to avoid a roadblock by failing to stop, passing
8 by or through such roadblock without permission, as provided for in
9 Section 540B of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 25. Fraudulently producing an infant in order to intercept the
11 inheritance or distribution of any personal estate or real estate,
12 as provided for in Section 578 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 26. Maiming by inflicting upon one's self any disabling injury,
15 as provided for in Section 752 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 27. Financial exploitation of an elderly or disabled adult with
18 funds, assets, or property valued at One Hundred Thousand Dollars
19 (\$100,000.00) or less, as provided for in paragraph 2 of subsection
20 B of Section 843.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 28. Conducting gambling games, as provided for in Section 941
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 29. Using a house, room, or place to conduct gambling games, as
2 provided for in Section 946 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 30. Engaging or participating in gambling games by a public
5 officer, as provided for in Section 948 of ~~Title 21 of the Oklahoma~~
6 ~~Statutes~~ this title;

7 31. Commercial gambling, as provided for in Section 982 of
8 ~~Title 21 of the Oklahoma Statutes~~ this title;

9 32. Letting premises for the purpose of betting on races or
10 receiving, registering, recording, or forwarding any money or thing
11 of value to a racetrack for betting purposes, as provided for in
12 paragraphs 2 through 6 of subsection A of Section 991 of ~~Title 21 of~~
13 ~~the Oklahoma Statutes~~ this title;

14 33. Using the terms "prize" or "gift" in a manner that is
15 untrue or misleading, as provided for in Section 996.3 of ~~Title 21~~
16 ~~of the Oklahoma Statutes~~ this title;

17 34. Advocating criminal syndicalism, sabotage, or the
18 necessity, propriety, or expediency of doing any act of physical
19 violence or unlawful act as a means of accomplishing any industrial
20 or political ends, change, or revolution, as provided for in
21 subsection A of Section 1327 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

1 35. Arson in the fourth degree by attempting to set fire to or
2 burn any building or property, as provided for in subsection A of
3 Section 1404 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 36. Delivering to another any merchandise for which any bill of
5 lading, receipt, or voucher has been issued and the value of the
6 property is Fifteen Thousand Dollars (\$15,000.00) or more, as
7 provided for in paragraph 4 of Section 1416 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 37. Burglary in the second degree by breaking and entering into
10 any commercial building or by breaking and entering into a coin-
11 operated or vending machine, as provided for in subsection A of
12 Section 1435 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 38. Embezzlement of property valued at Fifteen Thousand Dollars
14 (\$15,000.00) or more, as provided for in paragraph 4 of subsection B
15 of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 39. Embezzlement by a county or state officer, as provided for
17 in subsection C of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 40. False personation of another, as provided for in Section
20 1531 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 41. Receiving money or property intended for another with a
22 value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided
23 for in paragraph 4 of Section 1532 of ~~Title 21 of the Oklahoma~~
24 ~~Statutes~~ this title;

1 42. Use of a motor vehicle or motor-driven cycle for the
2 purpose of falsely impersonating a law enforcement officer which
3 causes another person to be injured, defrauded, harassed, vexed, or
4 annoyed, as provided for in paragraph 2 of subsection F of Section
5 1533 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 43. Obtaining, attempting to obtain, or presenting to a
7 financial institution personal, financial, or other information of
8 another person, as provided for in Section 1533.2 of ~~Title 21 of the~~
9 ~~Oklahoma Statutes~~ this title;

10 44. Obtaining property by trick, deception, or by means of a
11 false or bogus check and the property value is Fifteen Thousand
12 Dollars (\$15,000.00) or more, as provided for in paragraph 3 of
13 subsection A of Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 45. Making, drawing, uttering, or delivering two or more false
16 or bogus checks and the value is Fifteen Thousand Dollars
17 (\$15,000.00) or more, as provided for in paragraph 3 of subsection A
18 of Section 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 46. Selling, exchanging, or delivering any forged or
20 counterfeited promissory note, check, bill, draft, or other evidence
21 of debt knowing the same is forged or counterfeited and the value of
22 the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
23 provided for in paragraph 4 of subsection A of Section 1577 of ~~Title~~
24 ~~21 of the Oklahoma Statutes~~ this title;

1 47. Possession of any forged, altered, or counterfeited
2 negotiable note, bill, draft, or other evidence of debt and the
3 value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or
4 more, as provided for in paragraph 4 of subsection A of Section 1578
5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 48. Possession of any forged or counterfeited instrument with
7 intent to injure or defraud and the value of the instrument is
8 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
9 paragraph 4 of subsection A of Section 1579 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 49. Uttering or publishing as true any forged, altered, or
12 counterfeited instrument or counterfeit coins and the value of the
13 instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
14 provided for in paragraph 4 of subsection A of Section 1592 of ~~Title~~
15 ~~21 of the Oklahoma Statutes~~ this title;

16 50. Exhibiting false, forged, or altered books, papers,
17 vouchers, security, or other instruments of evidence to any public
18 officer or board with intent to deceive, as provided for in Section
19 1632 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 51. Destroying, altering, mutilating, or falsifying any books,
21 papers, writing, or securities belonging to a corporation or
22 association with intent to defraud, as provided for in Section 1635
23 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 52. Larceny of lost property and the value of the property is
2 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
3 paragraph 4 of Section 1702 of ~~Title 21 of the Oklahoma Statutes~~
4 this title;

5 53. Grand larceny and the value of the property is Fifteen
6 Thousand Dollars (\$15,000.00) or more, as provided for in paragraph
7 4 of subsection A of Section 1705 of ~~Title 21 of the Oklahoma~~
8 ~~Statutes~~ this title;

9 54. Grand larceny in any dwelling house or vessel, as provided
10 for in Section 1707 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 55. Larceny of any evidence of debt or other written
12 instrument, as provided for in Section 1709 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 56. Buying or receiving any property that has been stolen,
15 embezzled, or obtained by false pretense or robbery and has a value
16 of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
17 paragraph 3 of subsection A of Section 1713 of ~~Title 21 of the~~
18 ~~Oklahoma Statutes~~ this title;

19 57. Buying or receiving any construction equipment or farm
20 equipment that has been stolen, embezzled, or obtained by false
21 pretense or robbery, as provided for in Section 1713.1 of ~~Title 21~~
22 ~~of the Oklahoma Statutes~~ this title;

1 58. Bringing into this state the stolen property of another
2 obtained from another state or country, as provided for in Section
3 1715 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 59. Larceny of livestock or implement of husbandry, as provided
5 for in subsection A of Section 1716 of ~~Title 21 of the Oklahoma~~
6 ~~Statutes~~ this title;

7 60. Larceny of a dog, as provided for in Section 1718 of ~~Title~~
8 ~~21 of the Oklahoma Statutes~~ this title;

9 61. Grand larceny of exotic livestock, as provided for in
10 Section 1719.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 62. Larceny of an aircraft, automobile, construction equipment,
12 or farm equipment, valued at Fifty Thousand Dollars (\$50,000.00) or
13 more, as provided for in Section 1720 of ~~Title 21 of the Oklahoma~~
14 ~~Statutes~~ this title;

15 63. Tapping or drilling into a pipeline, as provided for in
16 Section 1721 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 64. Taking any crude oil or gasoline from any pipe, pipeline,
18 tank, tank car, or other receptacle or container and the value of
19 such product is One Thousand Dollars (\$1,000.00) or more, as
20 provided for in paragraph 2 of Section 1722 of ~~Title 21 of the~~
21 ~~Oklahoma Statutes~~ this title;

22 65. Larceny of merchandise from a retailer or wholesaler and
23 the value of the goods is Fifteen Thousand Dollars (\$15,000.00) or
24

1 more, as provided for in paragraph 5 of subsection A of Section 1731
2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 66. Larceny of trade secrets that is valued at Fifteen Thousand
4 Dollars (\$15,000.00) or more, as provided for in Section 1732 of
5 ~~Title 21 of the Oklahoma Statutes~~ this title;

6 67. Procuring, soliciting, selling, or receiving by fraudulent,
7 deceptive, or false means two to ten telephone records without
8 authorization, as provided for in paragraph 2 of subsection B of
9 Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 68. Masking, altering, or removing any locomotive or railway
11 car lights or signals, as provided for in Section 1778 of ~~Title 21~~
12 ~~of the Oklahoma Statutes~~ this title;

13 69. Mutilating, tearing, defacing, obliterating, or destroying
14 any written instrument, value of Fifteen Thousand Dollars
15 (\$15,000.00) or more, as provided for in Section 1779 of ~~Title 21 of~~
16 ~~the Oklahoma Statutes~~ this title;

17 70. Violations of the Oklahoma Computer Crimes Act, as provided
18 for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A of Section
19 1953 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 71. Contracting the sale of rights arising from a criminal act
21 without providing for the forfeiture of the proceeds, as provided
22 for in subsection A of Section 17 of Title 22 of the Oklahoma
23 Statutes;

1 72. Violating any of the provisions of the Oklahoma Clean Air
2 Act knowing that the violation places others in danger of death or
3 serious bodily injury, as provided for in subsection B of Section 2-
4 5-116 of Title 27A of the Oklahoma Statutes;

5 73. Violating any of the provisions of the Oklahoma Pollutant
6 Discharge Elimination System Act knowing that the violation places
7 others in imminent danger of death or serious bodily injury, as
8 provided for in subparagraph a of paragraph 3 of subsection G of
9 Section 2-6-206 of Title 27A of the Oklahoma Statutes;

10 74. Soliciting or accepting any bribe or money by a game warden
11 in connection with the performance of his or her duties as a game
12 warden, as provided for in subsection E of Section 3-201 of Title 29
13 of the Oklahoma Statutes;

14 75. Taking or enticing away an incapacitated or partially
15 incapacitated person or person for whom a guardian has been
16 appointed without consent of the guardian, as provided for in
17 Section 4-904 of Title 30 of the Oklahoma Statutes;

18 76. Violating any of the provisions of the Viatical Settlements
19 Act of 2008 if the value of the viatical settlement contract is more
20 than Two Thousand Five Hundred Dollars (\$2,500.00) but not more than
21 Thirty-five Thousand Dollars (\$35,000.00), as provided for in
22 paragraph 2 of subsection F of Section 4055.14 of Title 36 of the
23 Oklahoma Statutes;

1 77. Embezzlement of certain funds held in trust, value of
2 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
3 paragraph (2) of Section 153 of Title 42 of the Oklahoma Statutes;

4 78. Providing any false statement of a material fact in an
5 application for a certificate of title, as provided for in Section
6 4-108 of Title 47 of the Oklahoma Statutes;

7 79. Altering or forging any certificate of title issued by the
8 Oklahoma Tax Commission, as provided for in Section 4-109 of Title
9 47 of the Oklahoma Statutes;

10 80. Perjury by making any false affidavit, as provided for in
11 Section 6-302 of Title 47 of the Oklahoma Statutes;

12 81. Creating, manufacturing, issuing, or selling security
13 verification forms, as provided for in subsection B of Section 7-612
14 of Title 47 of the Oklahoma Statutes;

15 82. Committing a subsequent violation of driving under the
16 influence of alcohol or other intoxicating substance within ten (10)
17 years of being convicted of driving under the influence of alcohol
18 or other intoxicating substance, causing a personal injury accident
19 while driving under the influence of alcohol or other intoxicating
20 substance, or driving under the influence of alcohol or other
21 intoxicating substance while transporting a child, as provided for
22 in paragraph 2 of subsection E H of Section 11-902 of Title 47 of
23 the Oklahoma Statutes;

1 83. Operating a vehicle without a valid driver license for the
2 class of vehicle being operated and causing an accident resulting in
3 great bodily injury to another person, as provided for in subsection
4 B of Section 11-905 of Title 47 of the Oklahoma Statutes;

5 84. Operating a crusher without a proper license and receiving,
6 obtaining, or possessing any vehicle or property known to be stolen,
7 as provided for in paragraph 2 of subsection B of Section 592.9 of
8 Title 47 of the Oklahoma Statutes;

9 85. Selling a vehicle or other property to a crusher using
10 false or altered identification or making a false declaration of
11 ownership or lien status, as provided for in paragraph 3 of
12 subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

13 86. Owning, operating, or conducting a chop shop, transporting
14 any motor vehicle or parts to or from a chop shop, or selling,
15 transferring, purchasing, or receiving any motor vehicle or parts to
16 or from a chop shop, as provided for in subsection A of Section 1503
17 of Title 47 of the Oklahoma Statutes;

18 87. Altering, counterfeiting, defacing, destroying, disguising,
19 falsifying, forging, obliterating, or knowingly removing a vehicle
20 identification number, as provided for in subsection B of Section
21 1503 of Title 47 of the Oklahoma Statutes;

22 88. Perjury by a public officer or employee who states as true
23 any material matter knowing it to be false, as provided for in
24 Section 36.5 of Title 51 of the Oklahoma Statutes;

1 89. Advocating by teaching, justifying, or becoming a member of
2 or affiliated with the Communist Party or with any other party or
3 organization that advocates for the revolution, sedition, treason,
4 or overthrow of the government of the United States or the State of
5 Oklahoma by a public officer or employee, as provided for in Section
6 36.6 of Title 51 of the Oklahoma Statutes;

7 90. Perjury by verifying under oath any report, map, or drawing
8 required to be filed with the Corporation Commission knowing that
9 such material is false, as provided for in Section 109 of Title 52
10 of the Oklahoma Statutes;

11 91. Asking, receiving, or agreeing to receive any gift or
12 gratuity by any member of the Corporation Commission, as provided
13 for in Section 118 of Title 52 of the Oklahoma Statutes;

14 92. Burglary in the first degree by a bail enforcer by breaking
15 into and entering the dwelling house of any defendant or third party
16 for purposes of recovery or attempted recovery of a defendant, as
17 provided for in subsection A of Section 1350.6 of Title 59 of the
18 Oklahoma Statutes;

19 93. Distributing, dispensing, transporting, or possessing a
20 controlled dangerous substance or soliciting a person less than
21 eighteen (18) years of age to cultivate, distribute, or dispense a
22 controlled dangerous substance, as provided for in paragraph 1 of
23 subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

1 94. Creating, distributing, transporting, or possessing a
2 counterfeit controlled dangerous substance, as provided for in
3 paragraph 2 of subsection A of Section 2-401 of Title 63 of the
4 Oklahoma Statutes;

5 95. Manufacturing or distributing a controlled substance or
6 synthetic controlled substance, as provided for in paragraph 1 of
7 subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

8 96. Larceny, burglary, or theft of a controlled dangerous
9 substance, as provided for in subsection A of Section 2-403 of Title
10 63 of the Oklahoma Statutes;

11 97. Obtaining or attempting to obtain any controlled dangerous
12 substance by fraud, deceit, misrepresentation, or subterfuge, as
13 provided for in paragraph 1 of subsection A of Section 2-407 of
14 Title 63 of the Oklahoma Statutes;

15 98. Obtaining or attempting to obtain any controlled dangerous
16 substance by forgery of, alteration of, or changing any information
17 on a prescription or any written order, as provided for in paragraph
18 2 of subsection A of Section 2-407 of Title 63 of the Oklahoma
19 Statutes;

20 99. Obtaining or attempting to obtain any controlled dangerous
21 substance by the concealment of a material fact, as provided for in
22 paragraph 3 of subsection A of Section 2-407 of Title 63 of the
23 Oklahoma Statutes;

1 100. Obtaining or attempting to obtain any controlled dangerous
2 substance by the use of a false name or false address, as provided
3 for in paragraph 4 of subsection A of Section 2-407 of Title 63 of
4 the Oklahoma Statutes;

5 101. Obtaining or attempting to obtain any controlled dangerous
6 substance by failing to disclose the receipt or prescription of a
7 controlled dangerous substance of the same or similar therapeutic
8 use from another practitioner, as provided for in paragraph 5 of
9 subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

10 102. Manufacturing, creating, delivering, or possessing an
11 original prescription form or counterfeit prescription form, as
12 provided for in subsection B of Section 2-407 of Title 63 of the
13 Oklahoma Statutes;

14 103. Receiving or acquiring proceeds known to be derived from
15 any violation of the Uniform Controlled Dangerous Substances Act, as
16 provided for in subsection A of Section 2-503.1 of Title 63 of the
17 Oklahoma Statutes;

18 104. Knowingly or intentionally giving, selling, transferring,
19 trading, investing, concealing, transporting, or maintaining an
20 interest in anything of value which is intended to be used for
21 committing a violation of the Uniform Controlled Dangerous
22 Substances Act, as provided for in subsection B of Section 2-503.1
23 of Title 63 of the Oklahoma Statutes;

1 105. Directing, planning, organizing, initiating, financing,
2 managing, supervising, or facilitating the transportation or
3 transfer of proceeds known to be derived from a violation of the
4 Uniform Controlled Dangerous Substances Act, as provided for in
5 subsection C of Section 2-503.1 of Title 63 of the Oklahoma
6 Statutes;

7 106. Conducting a financial transaction involving proceeds
8 derived from a violation of the Uniform Controlled Dangerous
9 Substances Act for the purpose of concealing or disguising the
10 nature, location, source, ownership, or control of the proceeds
11 known to be derived from a violation of the Uniform Controlled
12 Dangerous Substances Act, as provided for in subsection D of Section
13 2-503.1 of Title 63 of the Oklahoma Statutes;

14 107. Encouraging, facilitating, or allowing access to any money
15 transmitter equipment for unlawful purposes, as provided for in
16 subsection B of Section 2-503.1d of Title 63 of the Oklahoma
17 Statutes;

18 108. Using a money services business or electronic funds
19 transfer network to facilitate any violation of the Uniform
20 Controlled Dangerous Substances Act, as provided for in Section 2-
21 503.1e of Title 63 of the Oklahoma Statutes;

22 109. Structuring, assisting, or attempting to structure any
23 unlawful transaction with one or more financial or nonfinancial
24

1 trades or businesses, as provided for in Section 2-503.1g of Title
2 63 of the Oklahoma Statutes;

3 110. Altering, counterfeiting, defacing, destroying,
4 disguising, falsifying, forging, obliterating, or removing a hull
5 identification number of a vessel or motor, as provided for in
6 subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

7 111. Commit or attempt to commit certain violations of the
8 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
9 provided for in subsection D of Section 4253 of Title 63 of the
10 Oklahoma Statutes;

11 112. Giving a false or bogus check in payment or remittance of
12 taxes, fees, penalties, or interest levied pursuant to any state tax
13 laws and the value of the false or bogus check is Five Hundred
14 Dollars (\$500.00) or more, as provided for in Section 218.1 of Title
15 68 of the Oklahoma Statutes;

16 113. Perjury by providing false answers to any questions from
17 the Oklahoma Tax Commission or making or presenting any false
18 affidavit to be filed with the Oklahoma Tax Commission, as provided
19 for in Section 244 of Title 68 of the Oklahoma Statutes;

20 114. Perjury by verifying by oath, affirmation, or declaration,
21 any false report or false return that is to be filed with the
22 Oklahoma Tax Commission, as provided for in Section 246 of Title 68
23 of the Oklahoma Statutes;

1 115. Making or manufacturing any tax stamp or falsely or
2 fraudulently forging, counterfeiting, reproducing, or possessing any
3 tax stamp, as provided for in subsection ~~(a)~~ A of Section 317 of
4 Title 68 of the Oklahoma Statutes;

5 116. Offering or selling unregistered securities, as provided
6 for in Section 1-301 of Title 71 of the Oklahoma Statutes;

7 117. Issuing investment certificates when insolvent by an
8 investment certificate issuer, as provided for in paragraph 1 of
9 subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

10 118. Transacting business as a broker-dealer without being
11 registered as a broker-dealer, as provided for in subsection A of
12 Section 1-401 of Title 71 of the Oklahoma Statutes;

13 119. Employing or associating with an individual for security
14 transaction purposes when the registration of the individual is
15 suspended or revoked or the individual is barred from employment or
16 association with a broker-dealer, as provided for in subsection C of
17 Section 1-401 of Title 71 of the Oklahoma Statutes;

18 120. Transacting business as an agent without being registered
19 as an agent, as provided for in subsection A of Section 1-402 of
20 Title 71 of the Oklahoma Statutes;

21 121. Employing or associating with an agent who transacts
22 business on behalf of broker-dealers when the agent is not
23 registered, as provided for in subsection D of Section 1-402 of
24 Title 71 of the Oklahoma Statutes;

1 122. Conducting business on behalf of a broker-dealer when the
2 registration of the agent is suspended or revoked or the individual
3 is barred from employment or association with a broker-dealer, as
4 provided for in subsection F of Section 1-402 of Title 71 of the
5 Oklahoma Statutes;

6 123. Transacting business as an investment adviser without
7 being registered as an investment adviser, as provided for in
8 subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;

9 124. Employing or associating with an individual to engage in
10 providing investment advice when the registration of the individual
11 is suspended or revoked or the individual is barred from employment
12 or association with an investment adviser, as provided for in
13 subsection C of Section 1-403 of Title 71 of the Oklahoma Statutes;

14 125. Employing or associating with an individual required to be
15 registered as an investment adviser representative who is not
16 registered as an investment adviser representative, as provided for
17 in subsection D of Section 1-403 of Title 71 of the Oklahoma
18 Statutes;

19 126. Transacting business as an investment adviser
20 representative without being registered as an investment adviser
21 representative, as provided for in subsection A of Section 1-404 of
22 Title 71 of the Oklahoma Statutes;

23 127. Conducting business on behalf of an investment adviser or
24 federal-covered investment adviser when the registration of the

1 investment adviser representative is suspended or revoked or the
2 individual is barred from employment or association with an
3 investment adviser or federal-covered investment adviser, as
4 provided for in subsection E of Section 1-404 of Title 71 of the
5 Oklahoma Statutes;

6 128. Employing a device, scheme, or artifice to defraud another
7 when offering, selling, or purchasing a security, as provided for in
8 paragraph 1 of Section 1-501 of Title 71 of the Oklahoma Statutes;

9 129. Making an untrue statement of a material fact or omitting
10 a material fact when offering, selling, or purchasing a security, as
11 provided for in paragraph 2 of Section 1-501 of Title 71 of the
12 Oklahoma Statutes;

13 130. Engaging in an act, practice, or course of business that
14 operates as a fraud or deceit upon another person when offering,
15 selling, or purchasing a security, as provided for in paragraph 3 of
16 Section 1-501 of Title 71 of the Oklahoma Statutes;

17 131. Employing a device, scheme, or artifice to defraud another
18 when advising others for compensation as to the value of securities,
19 as provided for in paragraph 1 of subsection A of Section 1-502 of
20 Title 71 of the Oklahoma Statutes;

21 132. Making an untrue statement of a material fact or omitting
22 a material fact when advising others for compensation as to the
23 value of securities, as provided for in paragraph 2 of subsection A
24 of Section 1-502 of Title 71 of the Oklahoma Statutes;

1 133. Engaging in an act, practice, or course of business that
2 operates as a fraud or deceit upon another person when advising
3 others for compensation as to the value of securities, as provided
4 for in paragraph 3 of subsection A of Section 1-502 of Title 71 of
5 the Oklahoma Statutes;

6 134. Making false or misleading statements in a record, as
7 provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

8 135. Making or causing to be made to a purchaser, customer,
9 client, or prospective customer or client, an inconsistent
10 representation, as provided for in Section 1-506 of Title 71 of the
11 Oklahoma Statutes;

12 136. Willfully violating certain provisions of the Oklahoma
13 Uniform Securities Act of 2004, as provided for in subsection A of
14 Section 1-508 of Title 71 of the Oklahoma Statutes;

15 137. Offering or selling any business opportunity without being
16 registered under the Oklahoma Business Opportunity Sales Act, as
17 provided for in Section 806 of Title 71 of the Oklahoma Statutes;

18 138. Offering or selling any business opportunity without a
19 written disclosure being filed, as provided for in subsection A of
20 Section 808 of Title 71 of the Oklahoma Statutes;

21 139. Offering or selling any business opportunity without a
22 business opportunity contract or agreement, as provided for in
23 subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

1 140. Making or using any specific representations from the
2 Oklahoma Business Opportunity Sales Act without having a minimum net
3 worth of Fifty Thousand Dollars (\$50,000.00), as provided for in
4 Section 811 of Title 71 of the Oklahoma Statutes;

5 141. Using information filed with or obtained by the
6 Administrator that is not public for the personal benefit of the
7 Administrator or any officers or employees of the Administrator, as
8 provided for in subsection B of Section 812 of Title 71 of the
9 Oklahoma Statutes;

10 142. Employing any device, scheme, or artifice to defraud in
11 connection with offering or selling any business opportunity, as
12 provided for in paragraph 1 of Section 819 of Title 71 of the
13 Oklahoma Statutes;

14 143. Making any untrue statement of a material fact or omitting
15 a material fact in connection with offering or selling any business
16 opportunity, as provided for in paragraph 2 of Section 819 of Title
17 71 of the Oklahoma Statutes;

18 144. Engaging in any act, practice, or course of business which
19 operates as a fraud or deceit in connection with offering or selling
20 any business opportunity, as provided for in paragraph 3 of Section
21 819 of Title 71 of the Oklahoma Statutes;

22 145. Making or causing to be made any false or misleading
23 statements or omitting to state a material fact necessary in any
24 document filed with the Administrator or in any proceeding pursuant

1 to the Oklahoma Business Opportunity Sales Act, as provided for in
2 Section 820 of Title 71 of the Oklahoma Statutes;

3 146. Filing any application for registration that is false,
4 incomplete, or misleading, as provided for in Section 821 of Title
5 71 of the Oklahoma Statutes;

6 147. Publishing, circulating, or using any advertising that
7 contains untrue statements of material facts or omits to state
8 material facts necessary, as provided for in Section 822 of Title 71
9 of the Oklahoma Statutes;

10 148. Taking or receiving any rebate, percentage of contract,
11 money, or any other thing of value by an officer of the Office of
12 Management and Enterprise Services from any person, firm, or
13 corporation, as provided for in Section 71 of Title 74 of the
14 Oklahoma Statutes;

15 149. Monopolizing, attempting to monopolize, or conspiring to
16 monopolize any part of trade or commerce, as provided for in
17 subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

18 150. Discrimination in price between different purchasers of
19 commodities by any person engaged in commerce, as provided for in
20 Section 204 of Title 79 of the Oklahoma Statutes;

21 151. Violation of the Oklahoma Antitrust Reform Act, as
22 provided for in Section 206 of Title 79 of the Oklahoma Statutes;

23 152. Having any interest, directly or indirectly, in any
24 contract for the purchase of property or construction of work by or

1 for the Grand River Dam Authority by a director, officer, agent, or
2 employee, as provided for in Section 867 of Title 82 of the Oklahoma
3 Statutes; and

4 153. Using explosive agent to kill, injure, or intimidate or to
5 damage property, as provided for in subsection B of Section 124.8 of
6 Title 63 of the Oklahoma Statutes.

7 B. Any person convicted of a Class C2 criminal offense set
8 forth in this section shall be punished by imprisonment in the
9 custody of the Department of Corrections for a term of not more than
10 seven (7) years and shall serve at least twenty percent (20%) of the
11 sentence imposed before release from custody including release to
12 electronic monitoring pursuant to Section 510.9 of Title 57 of the
13 Oklahoma Statutes.

14 C. 1. Every person who, having been previously convicted of
15 one or two Class C or Class D criminal offenses, commits a Class C2
16 criminal offense shall, upon conviction, be punished by imprisonment
17 in the custody of the Department of Corrections for a term of not
18 less than two (2) years nor more than ten (10) years and shall serve
19 at least twenty percent (20%) of the sentence imposed before release
20 from custody including release to electronic monitoring pursuant to
21 Section 510.9 of Title 57 of the Oklahoma Statutes.

22 2. Every person who, having been previously convicted of three
23 Class C or Class D criminal offenses, or one or more Class Y, Class
24 A, or Class B criminal offenses, commits a Class C2 criminal offense

1 shall, upon conviction, be punished by imprisonment in the custody
2 of the Department of Corrections for a term of not less than two (2)
3 years nor more than twelve (12) years and shall serve at least forty
4 percent (40%) of the sentence imposed before release from custody
5 including release to electronic monitoring pursuant to Section 510.9
6 of Title 57 of the Oklahoma Statutes.

7 D. Unless specifically exempted pursuant to subsection E of
8 this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this
9 title shall not apply to Class C2 criminal offenses.

10 E. 1. The criminal offenses listed in paragraphs 1, 2, 52, 53,
11 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section
12 shall be exempt from the penalty provisions provided for in
13 subsections B and C of this section. Persons convicted of the
14 criminal offenses provided for in paragraphs 1, 2, 52, 53, 54, 55,
15 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be
16 punished in accordance with the corresponding penalties provided for
17 in the Oklahoma Statutes including Section 51.1 of ~~Title 21 of the~~
18 ~~Oklahoma Statutes~~ this title.

19 2. The criminal offense listed in paragraph 64 of subsection A
20 of this section shall be exempt from the penalty provision provided
21 for in subsection B of this section. Persons convicted of the
22 criminal offense provided for in paragraph 64 of subsection A of
23 this section shall be punished in accordance with the corresponding
24 penalties as provided for in the Oklahoma Statutes including Section

1 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title. The
2 provisions of subsection C of this section still applies to the
3 criminal offense listed in paragraph 64 of subsection A of this
4 section.

5 F. All Class C2 criminal offenses shall be punishable by the
6 corresponding fines as provided for in the Oklahoma Statutes.

7 SECTION 4. AMENDATORY 47 O.S. 2021, Section 6-205, as
8 amended by Section 10, Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025,
9 Section 6-205), is amended to read as follows:

10 Section 6-205. A. Service Oklahoma shall immediately revoke
11 the driving privilege of any person, whether adult or juvenile, upon
12 receiving a record of conviction, in any municipal, state or federal
13 court within the United States of any of the following offenses,
14 when such conviction has become final:

15 1. Manslaughter or negligent homicide resulting from the
16 operation of a motor vehicle;

17 2. Driving or being in actual physical control of a motor
18 vehicle while under the influence of alcohol, any other intoxicating
19 substance, or the combined influence of alcohol and any other
20 intoxicating substance, any violation of paragraph 1, 2, 3, or 4 ~~or~~
21 ~~5~~ of subsection A or paragraphs 1 or 2 of subsection B of Section
22 11-902 of this title or any violation of Section 11-906.4 of this
23 title. However, Service Oklahoma shall not additionally revoke the
24 driving privileges of the person pursuant to this subsection if the

1 driving privilege of the person has been revoked because of a test
2 result or test refusal pursuant to Section 753 or 754 of this title
3 arising from the same circumstances which resulted in the conviction
4 unless the revocation because of a test result or test refusal is
5 set aside;

6 3. Driving a motor vehicle during the commission of a felony;

7 4. Failure to stop and render aid as required under the laws of
8 this state in the event of a motor vehicle accident resulting in the
9 death or personal injury of another;

10 5. Perjury or the making of a false affidavit or statement
11 under oath to Service Oklahoma under the Uniform Vehicle Code or
12 under any other law relating to the ownership or operation of motor
13 vehicles;

14 6. A felony conviction for unlawfully distributing, dispensing,
15 manufacturing, trafficking, attempting or conspiring to distribute,
16 dispense, manufacture, or traffic a controlled dangerous substance
17 as defined in the Uniform Controlled Dangerous Substances Act while
18 driving a motor vehicle;

19 7. A misdemeanor conviction for a violation of Section 1-229.34
20 of Title 63 of the Oklahoma Statutes;

21 8. Failure to obey a traffic control device as provided in
22 Section 11-202 of this title or a stop sign when such failure
23 results in great bodily injury to any other person; or
24

1 9. Failure to stop or to remain stopped for school bus loading
2 or unloading of children pursuant to Section 11-705 or 11-705.1 of
3 this title.

4 B. The first license revocation under any provision of this
5 section, except for paragraph 2, 3, 6, 7, or 9 of subsection A of
6 this section, shall be for a period of one (1) year. Such period
7 shall not be modified.

8 C. A license revocation under any provision of this section,
9 except for paragraph 2, 3, 6, or 7 of subsection A of this section,
10 shall be for a period of three (3) years if a prior revocation under
11 this section commenced within the preceding five-year period as
12 shown by the records of Service Oklahoma. Such period shall not be
13 modified.

14 D. The period of license revocation under paragraph 2, 3 or 6
15 of subsection A of this section shall be governed by the provisions
16 of Section 6-205.1 of this title.

17 E. The first license revocation under paragraph 7 of subsection
18 A of this section shall be for a period of six (6) months. Such
19 periods shall not be modified.

20 F. The first license revocation under paragraph 9 of subsection
21 A of this section shall be for a period of one (1) year. Such
22 period may be modified. Any appeal of the revocation of driving
23 privilege under paragraph 9 of subsection A of this section shall be
24

1 governed by Section 6-211 of this title; provided, any modification
2 under this subsection shall apply to Class D motor vehicles only.

3 G. As used in this section, "great bodily injury" means bodily
4 injury which creates a substantial risk of death or which causes
5 serious, permanent disfigurement or protracted loss or impairment of
6 the function of any bodily member or organ.

7 H. Any person whose driving privileges are or have been
8 canceled or denied pursuant to this section, except for paragraph 1,
9 2 or 8 of subsection A of this section, may file a petition for
10 relief based upon error or hardship.

11 1. The petition shall be filed in the district court which
12 notified Service Oklahoma. If the Notification originated in a
13 municipal court, the petition shall be filed in the district court
14 of the county in which the municipal court is located. A copy of
15 the Notification and a copy of Service Oklahoma's action canceling
16 or denying driving privileges pursuant to this section shall be
17 attached to the petition.

18 2. The district court shall conduct a hearing on the petition
19 and may determine the matter de novo, without notice to Service
20 Oklahoma and, if applicable, without notice to the municipal court;
21 provided, the district court shall not consider a collateral attack
22 upon the merits of any conviction or determination which has become
23 final.

1 3. The district court may deny the petition or, in its
2 discretion, issue a written Order to Service Oklahoma to decrease
3 the period of cancellation or denial to any period or issue a
4 written Order to vacate Service Oklahoma's action taken pursuant to
5 this section, in its entirety. The content of the Order shall not
6 grant or purport to grant any driving privileges to the person;
7 however, such Order may direct Service Oklahoma to do so if the
8 person is otherwise eligible therefor. The petitioner is
9 responsible for his or her own attorney fees. However, if the
10 petitioner is granted relief for error, then the party that
11 committed the error may be ordered to pay attorney fees and costs.
12 Unless all persons or agencies the court had reason to believe may
13 have had relevant information related to the court record and
14 departmental action have been given notice of the petition, attorney
15 fees and costs shall not be awarded against any party. In no event
16 shall Service Oklahoma be liable for attorney fees and costs for
17 suspending, revoking, canceling or denying a driver license based
18 upon reasonable reliance on a notice from a court requiring the
19 revocation, suspension, cancellation or denial of the driver license
20 according to law.

21 SECTION 5. AMENDATORY 47 O.S. 2021, Section 11-902, as
22 amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025,
23 Section 11-902), is amended to read as follows:
24

1 Section 11-902. A. It is unlawful and punishable as provided
2 in this section for any person to drive, operate, or be in actual
3 physical control of a motor vehicle within this state, whether upon
4 public roads, highways, streets, turnpikes, other public places or
5 upon any private road, street, alley or lane which provides access
6 to one or more single or multi-family dwellings, who:

7 1. Has a blood or breath alcohol concentration, as defined in
8 Section 756 of this title, of eight-hundredths (0.08) or more at the
9 time of a test of such person's blood or breath administered within
10 two (2) hours after the arrest of such person;

11 2. Is under the influence of alcohol;

12 3. ~~Has any amount of a Schedule I chemical or controlled~~
13 ~~substance, as defined in Section 2-204 of Title 63 of the Oklahoma~~
14 ~~Statutes, or one of its metabolites or analogs in the person's~~
15 ~~blood, saliva, urine or any other bodily fluid at the time of a test~~
16 ~~of such person's blood, saliva, urine or any other bodily fluid~~
17 ~~administered within two (2) hours after the arrest of such person;~~

18 4. Is under the influence of any intoxicating substance other
19 than alcohol which may render such person incapable of safely
20 driving or operating a motor vehicle; or

21 5. 4. Is under the combined influence of alcohol and any other
22 intoxicating substance which may render such person incapable of
23 safely driving or operating a motor vehicle.

1 B. A person commits the offense of driving under the influence
2 of a controlled substance if the person drives, operates or is in
3 actual physical control of a motor vehicle within this state and:

4 1. The person has an active psychoactive substance present in
5 the person's blood, saliva or other bodily fluid within two (2)
6 hours after the arrest at or above the Tier 1 per se threshold
7 established in paragraph 2 of subsection D of this section; or

8 2. The person has a concentration of an active psychoactive
9 substance within the Tier 2 range as established in paragraph 3 of
10 subsection D of this section and the state presents additional
11 evidence of actual impairment, including, but not limited to,
12 erratic or unsafe driving behavior, performance on a Standardized
13 Field Sobriety Test, evaluation by a certified Drug Recognition
14 Expert, or video or testimonial evidence indicating diminished
15 ability to safely operate a motor vehicle.

16 C. The presence of a non-impairing metabolite, including, but
17 not limited to, Carboxy-THC or any other inactive metabolite of a
18 controlled substance, shall not constitute a per se violation of
19 this section and shall not be sufficient evidence to sustain a
20 conviction absent proof of impairment under subsections A or B of
21 this section.

22 D. 1. For the purposes of this section:

23 a. "active psychoactive substance" means Delta-9-
24 tetrahydrocannabinol (delta-9-THC) or any other

1 controlled substance in a form capable of producing
2 acute psychoactive or impairing effects, and

3 b. "non-impairing metabolite" means any metabolite or
4 chemical derivative of a controlled substance that
5 does not itself cause impairment and for which no
6 reliable correlation with impaired driving has been
7 established.

8 2. A person shall be presumed impaired if testing shows a
9 concentration of five nanogram per milliliter (5 ng/ml) or more of
10 active delta-9-THC in whole blood, or an equivalent scientifically
11 validated concentration in another approved bodily matrix. This
12 presumption shall be rebuttable.

13 3. A concentration between two nanograms per milliliter (2
14 ng/ml) and five nanogram per milliliter (5 ng/ml) of active delta-9-
15 THC in whole blood shall not constitute a per se offense, but may be
16 considered along with impairment evidence under subsection B of this
17 section.

18 4. The Oklahoma Board of Tests for Alcohol and Drug Influence
19 shall be authorized to promulgate rules adjust Tier 1 and Tier 2
20 thresholds consistent with new scientific research.

21 E. A registered medical marijuana patient may present evidence
22 of lawful therapeutic use and tolerance to rebut the presumption of
23 impairment under paragraph 3 of subsection D of this section.
24 Evidence may include medical authorization, dosage history, or

1 expert testimony. Nothing in his subsection shall prohibit
2 prosecution where independent evidence of impairment exists.

3 F. Chemical test results shall specify concentrations of active
4 THC, concentrations of inactive metabolites, and the timing of
5 sample collections. Defendants shall have the right to independent
6 testing.

7 G. The fact that any person charged with a violation of this
8 section is or has been lawfully entitled to use alcohol or a
9 controlled dangerous substance or any other intoxicating substance
10 shall not constitute a defense against any charge of violating this
11 section.

12 ~~G.~~ H 1. Any person who is convicted of a violation of the
13 provisions of this section shall be guilty of a misdemeanor for the
14 first offense and shall:

- 15 a. participate in an assessment and evaluation pursuant
16 to subsection ~~G~~ L of this section and shall follow all
17 recommendations made in the assessment and evaluation,
18 b. be punished by imprisonment in jail for not less than
19 ten (10) days nor more than one (1) year, and
20 c. be fined not more than One Thousand Dollars
21 (\$1,000.00).

22 2. Any person who, having been convicted of or having received
23 deferred judgment for a violation of this section or a violation
24 pursuant to the provisions of any law of this state or another state

1 prohibiting the offenses provided in this section, Section 11-904 of
2 this title or paragraph 4 of subsection A of Section 852.1 of this
3 title, or having a prior conviction in a municipal criminal court of
4 record for the violation of a municipal ordinance prohibiting the
5 offense provided for in this section commits a subsequent violation
6 of this section within ten (10) years of the date following the
7 completion of the execution of said sentence or deferred judgment
8 shall, upon conviction, be guilty of a Class C2 felony offense and
9 shall participate in an assessment and evaluation pursuant to
10 subsection G L of this section and shall be sentenced to:

- 11 a. follow all recommendations made in the assessment and
12 evaluation for treatment at the defendant's expense,
13 or
- 14 b. imprisonment as provided for in subsections B through
15 F of Section 20M of Title 21 of the Oklahoma Statutes,
16 and a fine of not more than Two Thousand Five Hundred
17 Dollars (\$2,500.00), or
- 18 c. treatment, imprisonment as provided for in subsections
19 B through F of Section 20M of Title 21 of the Oklahoma
20 Statutes, and a fine within the limitations prescribed
21 in subparagraphs a and b of this paragraph.

22 However, if the treatment in subsection G L of this section does
23 not include residential or inpatient treatment for a period of not
24

1 less than five (5) days, the person shall serve a term of
2 imprisonment of at least five (5) days.

3 3. Any person who commits a violation of this section after
4 having been convicted of a felony offense pursuant to the provisions
5 of this section or a violation pursuant to the provisions of any law
6 of this state or another state prohibiting the offenses provided for
7 in this section, Section 11-904 of this title or paragraph 4 of
8 subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes
9 shall be guilty of a Class B4 felony offense and participate in an
10 assessment and evaluation pursuant to subsection G L of this section
11 and shall be sentenced to:

- 12 a. follow all recommendations made in the assessment and
13 evaluation for treatment at the defendant's expense,
14 two hundred forty (240) hours of community service and
15 use of an ignition interlock device, as provided by
16 subparagraph n of paragraph 1 of subsection A of
17 Section 991a of Title 22 of the Oklahoma Statutes, or
18 b. placement in the custody of the Department of
19 Corrections for not less than one (1) year and not to
20 exceed ten (10) years and a fine of not more than Five
21 Thousand Dollars (\$5,000.00), or
22 c. treatment, imprisonment and a fine within the
23 limitations prescribed in subparagraphs a and b of
24 this paragraph.

1 However, if the treatment in subsection G L of this section does
2 not include residential or inpatient treatment for a period of not
3 less than ten (10) days, the person shall serve a term of
4 imprisonment of at least ten (10) days.

5 4. Any person who commits a violation of this section after
6 having been twice convicted of a felony offense pursuant to the
7 provisions of this section or a violation pursuant to the provisions
8 of any law of this state or another state prohibiting the offenses
9 provided for in this section, Section 11-904 of this title or
10 paragraph 4 of subsection A of Section 852.1 of Title 21 of the
11 Oklahoma Statutes shall be guilty of a Class B3 felony offense and
12 participate in an assessment and evaluation pursuant to subsection G
13 L of this section and shall be sentenced to:

- 14 a. follow all recommendations made in the assessment and
15 evaluation for treatment at the defendant's expense,
16 followed by not less than one (1) year of supervision
17 and periodic testing at the defendant's expense, four
18 hundred eighty (480) hours of community service, and
19 use of an ignition interlock device, as provided by
20 subparagraph n of paragraph 1 of subsection A of
21 Section 991a of Title 22 of the Oklahoma Statutes, for
22 a minimum of thirty (30) days, or
23 b. placement in the custody of the Department of
24 Corrections for not less than one (1) year and not to

1 exceed twenty (20) years and a fine of not more than
2 Five Thousand Dollars (\$5,000.00), or

3 c. treatment, imprisonment and a fine within the
4 limitations prescribed in subparagraphs a and b of
5 this paragraph.

6 However, if the person does not undergo residential or inpatient
7 treatment pursuant to subsection G L of this section the person
8 shall serve a term of imprisonment of at least ten (10) days.

9 5. Any person who, after a previous conviction of a violation
10 of murder in the second degree or manslaughter in the first degree
11 in which the death was caused as a result of driving under the
12 influence of alcohol or other intoxicating substance, is convicted
13 of a violation of this section shall be guilty of a Class A2 felony
14 offense and shall be punished by imprisonment in the custody of the
15 Department of Corrections for not less than five (5) years and not
16 to exceed twenty (20) years, and a fine of not more than Ten
17 Thousand Dollars (\$10,000.00).

18 6. Provided, however, a conviction from another state shall not
19 be used to enhance punishment pursuant to the provisions of this
20 subsection if that conviction is based on a blood or breath alcohol
21 concentration of less than eight-hundredths (0.08).

22 7. In any case in which a defendant is charged with driving
23 under the influence of alcohol or other intoxicating substance
24 offense within any municipality with a municipal court other than a

1 court of record, the charge shall be presented to the county's
2 district attorney and filed with the district court of the county
3 within which the municipality is located.

4 ~~D.~~ I. Any person who is convicted of a violation of driving
5 under the influence with a blood or breath alcohol concentration of
6 fifteen-hundredths (0.15) or more pursuant to this section shall be
7 deemed guilty of aggravated driving under the influence, a Class B3
8 felony offense. A person convicted of aggravated driving under the
9 influence shall participate in an assessment and evaluation pursuant
10 to subsection G L of this section and shall comply with all
11 recommendations for treatment. Such person shall be sentenced as
12 provided in paragraph 1, 2, 3, 4 or 5 of subsection E H of this
13 section and to:

14 1. Not less than one (1) year of supervision and periodic
15 testing at the defendant's expense; and

16 2. An ignition interlock device or devices, as provided by
17 subparagraph n of paragraph 1 of subsection A of Section 991a of
18 Title 22 of the Oklahoma Statutes, for a minimum of ninety (90)
19 days.

20 ~~E.~~ J. When a person is sentenced to imprisonment in the custody
21 of the Department of Corrections, the person shall be processed
22 through the Lexington Assessment and Reception Center or at a place
23 determined by the Director of the Department of Corrections. The
24

1 Department of Corrections shall classify and assign the person to
2 one or more of the following:

3 1. The Department of Mental Health and Substance Abuse Services
4 pursuant to paragraph 1 of subsection A of Section 612 of Title 57
5 of the Oklahoma Statutes; or

6 2. A correctional facility operated by the Department of
7 Corrections with assignment to substance abuse treatment.

8 Successful completion of a Department-of-Corrections-approved
9 substance abuse treatment program shall satisfy the recommendation
10 for a ten-hour or twenty-four-hour alcohol and drug substance abuse
11 course or treatment program or both. Successful completion of an
12 approved Department of Corrections substance abuse treatment program
13 may precede or follow the required assessment.

14 ~~F.~~ K. The Department of Public Safety is hereby authorized to
15 reinstate any suspended or revoked driving privilege when the person
16 meets the statutory requirements which affect the existing driving
17 privilege.

18 ~~G.~~ L. Any person who is found guilty of a violation of the
19 provisions of this section shall be ordered to participate in an
20 alcohol and drug substance abuse evaluation and assessment program
21 offered by a certified assessment agency or certified assessor for
22 the purpose of evaluating and assessing the receptivity to treatment
23 and prognosis of the person and shall follow all recommendations
24 made in the assessment and evaluation for treatment. The court

1 shall order the person to reimburse the agency or assessor for the
2 evaluation and assessment. Payment shall be remitted by the
3 defendant or on behalf of the defendant by any third party;
4 provided, no state-appropriated funds are utilized. The fee for an
5 evaluation and assessment shall be the amount provided in subsection
6 C of Section 3-460 of Title 43A of the Oklahoma Statutes. The
7 evaluation and assessment shall be conducted at a certified
8 assessment agency, the office of a certified assessor or at another
9 location as ordered by the court. The agency or assessor shall,
10 within seventy-two (72) hours from the time the person is evaluated
11 and assessed, submit a written report to the court for the purpose
12 of assisting the court in its sentencing determination. The court
13 shall, as a condition of any sentence imposed, including deferred
14 and suspended sentences, require the person to participate in and
15 successfully complete all recommendations from the evaluation, such
16 as an alcohol and substance abuse treatment program pursuant to
17 Section 3-452 of Title 43A of the Oklahoma Statutes. If such report
18 indicates that the evaluation and assessment shows that the
19 defendant would benefit from a ten-hour or twenty-four-hour alcohol
20 and drug substance abuse course or a treatment program or both, the
21 court shall, as a condition of any sentence imposed, including
22 deferred and suspended sentences, require the person to follow all
23 recommendations identified by the evaluation and assessment and
24 ordered by the court. No person, agency or facility operating an

1 evaluation and assessment program certified by the Department of
2 Mental Health and Substance Abuse Services shall solicit or refer
3 any person evaluated and assessed pursuant to this section for any
4 treatment program or substance abuse service in which such person,
5 agency or facility has a vested interest; however, this provision
6 shall not be construed to prohibit the court from ordering
7 participation in or any person from voluntarily utilizing a
8 treatment program or substance abuse service offered by such person,
9 agency or facility. If a person is sentenced to imprisonment in the
10 custody of the Department of Corrections and the court has received
11 a written evaluation report pursuant to the provisions of this
12 subsection, the report shall be furnished to the Department of
13 Corrections with the judgment and sentence. Any evaluation and
14 assessment report submitted to the court pursuant to the provisions
15 of this subsection shall be handled in a manner which will keep such
16 report confidential from the general public's review. Nothing
17 contained in this subsection shall be construed to prohibit the
18 court from ordering judgment and sentence in the event the defendant
19 fails or refuses to comply with an order of the court to obtain the
20 evaluation and assessment required by this subsection. If the
21 defendant fails or refuses to comply with an order of the court to
22 obtain the evaluation and assessment, the Department of Public
23 Safety shall not reinstate driving privileges until the defendant
24 has complied in full with such order. Nothing contained in this

1 subsection shall be construed to prohibit the court from ordering
2 judgment and sentence and any other sanction authorized by law for
3 failure or refusal to comply with an order of the court.

4 ~~H.~~ M. Any person who is found guilty of a violation of the
5 provisions of this section shall be required by the court to attend
6 a victims impact panel program, as defined in subsection H of
7 Section 991a of Title 22 of the Oklahoma Statutes, if such a program
8 is offered in the county where the judgment is rendered, and to pay
9 a fee of Seventy-five Dollars (\$75.00), as set by the governing
10 authority of the program and approved by the court, to the program
11 to offset the cost of participation by the defendant, if in the
12 opinion of the court the defendant has the ability to pay such fee.

13 ~~I.~~ N. Any person who is found guilty of a felony violation of
14 the provisions of this section shall be required to submit to
15 electronic monitoring as authorized and defined by Section 991a of
16 Title 22 of the Oklahoma Statutes.

17 ~~J.~~ O. Any person who is found guilty of a violation of the
18 provisions of this section who has been sentenced by the court to
19 perform any type of community service shall not be permitted to pay
20 a fine in lieu of performing the community service.

21 ~~K.~~ P. When a person is found guilty of a violation of the
22 provisions of this section, the court shall order, in addition to
23 any other penalty, the defendant to pay a one-hundred-dollar
24 assessment to be deposited in the Drug Abuse Education and Treatment

1 Revolving Fund created in Section 2-503.2 of Title 63 of the
2 Oklahoma Statutes, upon collection.

3 ~~H.~~ Q. 1. When a person is eighteen (18) years of age or older,
4 and is the driver, operator, or person in physical control of a
5 vehicle, and is convicted of violating any provision of this section
6 while transporting or having in the motor vehicle any child less
7 than eighteen (18) years of age, the fine shall be enhanced to
8 double the amount of the fine imposed for the underlying driving
9 under the influence (DUI) violation which shall be in addition to
10 any other penalties allowed by this section.

11 2. Nothing in this subsection shall prohibit the prosecution of
12 a person pursuant to Section 852.1 of Title 21 of the Oklahoma
13 Statutes who is in violation of any provision of this section or
14 Section 11-904 of this title.

15 ~~M.~~ R. Any plea of guilty, nolo contendere or finding of guilt
16 for a violation of this section or a violation pursuant to the
17 provisions of any law of this state or another state prohibiting the
18 offenses provided for in this section, Section 11-904 of this title,
19 or paragraph 4 of subsection A of Section 852.1 of Title 21 of the
20 Oklahoma Statutes, shall constitute a conviction of the offense for
21 the purpose of this section; provided, any deferred judgment shall
22 only be considered to constitute a conviction for a period of ten
23 (10) years following the completion of any court-imposed
24 probationary term.

1 ~~N.~~ S. If qualified by knowledge, skill, experience, training or
2 education, a witness shall be allowed to testify in the form of an
3 opinion or otherwise solely on the issue of impairment, but not on
4 the issue of specific alcohol concentration level, relating to the
5 following:

6 1. The results of any standardized field sobriety test
7 including, but not limited to, the horizontal gaze nystagmus (HGN)
8 test administered by a person who has completed training in
9 standardized field sobriety testing; or

10 2. Whether a person was under the influence of one or more
11 impairing substances and the category of such impairing substance or
12 substances. A witness who has received training and holds a current
13 certification as a drug recognition expert shall be qualified to
14 give the testimony in any case in which such testimony may be
15 relevant.

16 SECTION 6. AMENDATORY 47 O.S. 2021, Section 11-904, as
17 amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025,
18 Section 11-904), is amended to read as follows:

19 Section 11-904. A. Any person who is involved in a personal
20 injury accident while driving or operating a motor vehicle within
21 this state and who is in violation of the provisions of subsection A
22 or subsection B of Section 11-902 of this title may be charged with
23 a violation of the provisions of this subsection as follows:
24

1 1. Any person who is convicted of a violation of the provisions
2 of this subsection shall be deemed guilty of a misdemeanor for the
3 first offense and shall be punished by imprisonment in the county
4 jail for not less than ninety (90) days nor more than one (1) year,
5 and a fine of not more than Two Thousand Five Hundred Dollars
6 (\$2,500.00); and

7 2. Any person who is convicted of a violation of the provisions
8 of this subsection after having been previously convicted of a
9 violation of this subsection or of Section 11-902 of this title
10 shall be deemed guilty of a Class B5 felony offense and shall be
11 punished by imprisonment in the custody of the Department of
12 Corrections for not less than one (1) year and not more than five
13 (5) years, and a fine of not more than Five Thousand Dollars
14 (\$5,000.00).

15 B. 1. Any person who causes an accident resulting in great
16 bodily injury to any person other than himself while driving or
17 operating a motor vehicle within this state and who is in violation
18 of the provisions of subsection A or subsection B of Section 11-902
19 of this title may be charged with a violation of the provisions of
20 this subsection. Any person who is convicted of a violation of the
21 provisions of this subsection shall be deemed guilty of a Class B1
22 felony offense punishable by imprisonment in the custody of the
23 Department of Corrections for not less than four (4) years and not
24

1 more than twenty (20) years, and a fine of not more than Five
2 Thousand Dollars (\$5,000.00).

3 2. As used in this subsection, "great bodily injury" means
4 bodily injury which creates a substantial risk of death or which
5 causes serious, permanent disfigurement or protracted loss or
6 impairment of the function of any bodily member or organ.

7 SECTION 7. AMENDATORY 47 O.S. 2021, Section 11-906.4, is
8 amended to read as follows:

9 Section 11-906.4. A. It is unlawful, and punishable as
10 provided in subsection B of this section, for any person under
11 twenty-one (21) years of age to drive, operate, or be in actual
12 physical control of a motor vehicle within this state who:

13 1. Has any measurable quantity of alcohol in the person's blood
14 or breath at the time of a test administered within two (2) hours
15 after an arrest of the person;

16 2. Exhibits evidence of being under the influence of any other
17 intoxicating substance as shown by analysis of a specimen of the
18 person's blood, breath, saliva, or urine in accordance with the
19 provisions of Sections 752 and 759 of this title; or

20 3. Exhibits evidence of the combined influence of alcohol and
21 any other intoxicating substance.

22 B. Any person under twenty-one (21) years of age who violates
23 any provision of this section shall be subject to the seizure of the
24 driver license of that person at the time of arrest or detention and

1 the person, upon conviction, shall be guilty of operating or being
2 in actual physical control of a motor vehicle while under the
3 influence while under age and shall be punished:

4 1. For a first conviction, by:

- 5 a. a fine of not less than One Hundred Dollars (\$100.00)
6 nor more than Five Hundred Dollars (\$500.00),
- 7 b. assignment to and completion of twenty (20) hours of
8 community service,
- 9 c. requiring the person to attend and complete a
10 treatment program, or
- 11 d. any combination of fine, community service, or
12 treatment;

13 2. Upon a second conviction, by:

- 14 a. assignment to and completion of not less than two
15 hundred forty (240) hours of community service, and
- 16 b. the requirement, after the conclusion of the mandatory
17 revocation period, to install an ignition interlock
18 device or devices, as provided by subparagraph n of
19 paragraph 1 of subsection A of Section 991a of Title
20 22 of the Oklahoma Statutes, for a period of not less
21 than thirty (30) days.

22 In addition, a second conviction may be punished by a fine of not
23 less than One Hundred Dollars (\$100.00) nor more than One Thousand
24 Dollars (\$1,000.00), or by requiring the person to attend and

1 complete a treatment program, as recommended by the assessment
2 required pursuant to subparagraph c of paragraph 2 of subsection D
3 of this section, or by both; or

4 3. Upon a third or subsequent conviction, by:

5 a. assignment to and completion of not less than four
6 hundred eighty (480) hours of community service, and

7 b. the requirement, after the conclusion of the mandatory
8 revocation period, to install an ignition interlock
9 device or devices, as provided by subparagraph n of
10 paragraph 1 of subsection A of Section 991a of Title
11 22 of the Oklahoma Statutes, for a period of not less
12 than thirty (30) days.

13 In addition, a third or subsequent conviction may be punished by a
14 fine of not less than One Hundred Dollars (\$100.00) nor more than
15 Two Thousand Dollars (\$2,000.00), or by requiring the person to
16 attend and complete a treatment program, as recommended by the
17 assessment required pursuant to subparagraph c of paragraph 2 of
18 subsection D of this section, or by both.

19 C. The court may assess additional community service hours in
20 lieu of any fine specified in this section.

21 D. In addition to any penalty or condition imposed pursuant to
22 the provisions of this section, the person shall be subject to:

23 1. Upon a first conviction:
24

- a. the cancellation or denial of driving privileges as ordered by the court pursuant to subsection B of Section 6-107.1 of this title,
- b. the mandatory revocation of driving privileges pursuant to Section 6-205.1, 753 or 754 of this title, which revocation period may be modified as provided by law, and
- c. the continued installation of an ignition interlock device or devices, at the expense of the person, as provided in subsection D of Section 6-212.3 of this title, after the mandatory period of cancellation, denial or revocation for a period as provided in paragraph 1 of subsection A of Section 6-212.3 of this title;

2. Upon a second conviction:

- a. the cancellation or denial of driving privileges, as ordered by the court pursuant to subsection B of Section 6-107.2 of this title,
- b. the mandatory revocation of driving privileges pursuant to Section 6-205.1, 753 or 754 of this title, which period may be modified as provided by law,
- c. an assessment of the person's degree of alcohol abuse, in the same manner as prescribed in subsection ~~H~~ M of

1 Section 11-902 of this title, which may result in
2 treatment as deemed appropriate by the court, and
3 d. the continued installation of an ignition interlock
4 device or devices, at the expense of the person, as
5 provided in subsection D of Section 6-212.3 of this
6 title, after the mandatory period of cancellation,
7 denial or revocation for a period as provided in
8 paragraph 2 of subsection A of Section 6-212.3 of this
9 title; and

10 3. Upon a third or subsequent conviction:

- 11 a. the cancellation or denial of driving privileges as
12 ordered by the court pursuant to subsection B of
13 Section 6-107.2 of this title,
14 b. the mandatory revocation of driving privileges
15 pursuant to Section 6-205.1, 753 or 754 of this title,
16 which period may be modified as provided by law,
17 c. an assessment of the person's degree of alcohol abuse,
18 in the same manner as prescribed in subsection ~~H~~ M of
19 Section 11-902 of this title, which may result in
20 treatment as deemed appropriate by the court, and
21 d. the continued installation of an ignition interlock
22 device or devices, at the expense of the person, as
23 provided in subsection D of Section 6-212.3 of this
24 title, after the mandatory period of cancellation,

1 denial, or revocation for a period as provided in
2 paragraph 3 of subsection A of Section 6-212.3 of this
3 title.

4 E. Nothing in this section shall be construed to prohibit the
5 filing of charges pursuant to Section 761 or 11-902 of this title
6 when the facts warrant.

7 F. As used in this section:

8 1. The term "conviction" includes a juvenile delinquency
9 adjudication by a court; and

10 2. The term "revocation" includes the cancellation or denial of
11 driving privileges by the Department.

12 SECTION 8. This act shall become effective November 1, 2026.

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